

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Jamal Khan Mandokhail
Justice Naeem Akhter Afghan
Justice Aqeel Ahmed Abbasi

Criminal Petition No.187-P of 2026

[Against the judgment dated 10.07.2026
passed by the Peshawar High Court,
Peshawar in Cr.MB No.1862-P/26]

Nadar Khan

...Petitioner(s)

Versus

The State through AG, Khyber Pakhtunkhwa and
another

...Respondent(s)

For the Petitioner(s) : Mr. Shabbir Hussain Gigyani, ASC

For the State : Mr. Altaf Khan, AAG KP
Tahir Khan, SI, PS Lund Khawar
Mardan

For the Complainant(s) : Mr. Zulfiqar Ahmed Bhutta, ASC
Syed Rifaqat Hussain Shah, AOR

Date of Hearing : 21.09.2026

ORDER

Aqeel Ahmed Abbasi, J.- Through instant Criminal Petition for Leave to Appeal the Petitioner has impugned the judgment dated 10.07.2026, passed by the Peshawar High Court, Peshawar, in Cr.MB. No.1862-P/2026, whereby bail after arrest filed by the Petitioner has been dismissed.

2. It has been contended by learned counsel for the Petitioner that Petitioner is innocent who has been falsely implicated by the complainant party in FIR No.360/22 dated 11.04.2022 registered under sections 302/324/34 PPC at Police Station Lund Khwar, District Mardan alongwith two co-accused, who were real sons of the Petitioner. Learned counsel submits that Petitioner is a man of advanced age (78 Years) with infirm health as he is suffering from serious diseases including hypertension, diabetes mellitus and ischemic heart disease which fact has been duly established by the Medical Board constituted pursuant to

directions of the Courts, however, both the Courts below have not taken into consideration either the merits or the ground of serious illness of the Petitioner while observing that since the Petitioner has been nominated with a specific role whereas the Medical Board has not declared that Petitioner is suffering from terminal or life-threatening illnesses nor it has been recorded in the report that the required treatment cannot be provided if Petitioner remains in judicial custody. According to learned counsel for the Petitioner, even on merits, Petitioner has *prima facie*, a good case of further inquiry as a joint role has been assigned to the Petitioner alongwith co-accused namely Siraj for causing firearm injury to Saadullah (deceased) whereas no recovery of weapon has been effected from the Petitioner. It has been further contended by learned counsel for the Petitioner, as per prosecution, the empties, recovered from the place of incident, have been fired from one pistol, therefore, it is a case of further inquiry and the Petitioner who is a man of advanced age and suffering from terminal and life-threatening diseases as referred hereinabove is entitled to be released on furnishing sureties.

3. Conversely, learned counsel for the Complainant and the learned AAG have opposed the grant of bail to the Petitioner on the grounds that Petitioner has been nominated in the FIR with a specific role of causing firearm injury to Saadullah (deceased) whereas the Petitioner remained absconder for a considerable period of time. It has been further contended by learned counsel for the Complainant that Petitioner could not make out a case for grant of bail on medical grounds as the Medical Board constituted did not declare the illness of the Petitioner as life-threatening nor it has been observed that such treatment cannot be provided to the Petitioner while in judicial custody, therefore, he is not entitled to be released on bail on merits as well as on medical grounds.

4. Heard the learned counsel for the parties, perused the record and the impugned judgment passed by the High Court in the instant matter.

5. From perusal of the allegations as contained in the FIR, it has been observed that Petitioner alongwith his two real

sons have been nominated for having caused firearm injuries to the complainant (Zafar Khan), his real father (Saadullah) and his brother (Zardali Khan) who both succumbed to injuries and died whereas the complainant was injured. All the three of the same family have been assigned a joint role of making firing with pistols at the complainant party, which resulted in death of Zardali Khan and Saadullah and caused injury to the complainant. However, no specific detail has been given to *prima facie* show the injury on the body of complainant party resulted in death of the deceased in order to ascertain role of Petitioner in commission of alleged offence. Under the circumstances involving the Petitioner in the instant crime while using wider net cannot be ruled out at this stage. In the instant case, both the Courts below could not appreciate this aspect of the matter which requires further inquiry into the allegations, particularly, when no recovery has been effected from the Petitioner whereas the empties found at the place of incident have reportedly been fired from the same pistol. Moreover, the Petitioner is a man of advanced age suffering from serious illnesses which are life-threatening if not properly treated by specialised doctors as opined by the Standing Medical Board in following terms:

"The Standing Medical Board is of the opinion that patient is known case of hypertension, diabetes mellitus and ischemic heart disease. He was examined and investigated. His fresh investigations shows ischemic changes in ECG and ECHO shows inferolateral hypokinesia, impaired LV function, aortic sclerosis, mild AR, LVH and mild MR."

It is surprising to note that the Medical ground raised by the Petitioner, despite of Medical Board's opinion confirming the said diseases, has summarily been turned down without ascertaining and recording a finding to the effect that such medical facility and treatment is available or being provided to the Petitioner in judicial custody. Such omission can be fatal to the life of accused if not dealt promptly.

6. In view of hereinabove facts and circumstances of the case, we are of the view that Petitioner has made out a case of further inquiry entitling him for grant of post-arrest bail. This petition is, therefore, converted into appeal and allowed. The

impugned judgment dated 10.07.2026 passed by the Peshawar High Court, Peshawar, is set aside. Resultantly, the appellant is granted bail after arrest subject to his furnishing bail bonds in the sum of Rs.200,000/- with one surety in the like amount to the satisfaction of the learned Trial Court.

Above are the reasons for our short order of even date.

Judge

Judge

Islamabad, the
21st Sept, 2026
Approved for Reporting
*Hamid/**

Judge